

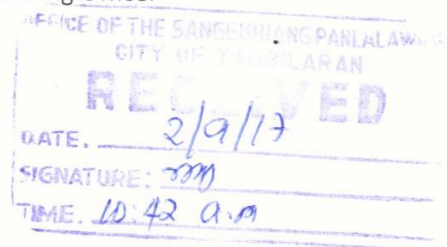


Republic of the Philippines
Province of Bohol
MUNICIPALITY OF PANGLAO

OFFICE OF THE SANGGUNIANG BAYAN

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE SANGGUNIANG BAYAN OF PANGLAO, BOHOL HELD ON JANUARY 3 , 2017 AT THE SB SESSION HALL, PANGLAO, BOHOL

PRESENT: Hon. Pedro E. Fuertes ViceMayor/Presiding Officer
Hon. Briccio D. Velasco SB Member
Hon. Amira Alia P. Montero - do -
Hon. Noel E. Hormachuelos - do -
Hon. Dennis B. Hora - do -
Hon. Zinon G. Labaya - do -
Hon. Crescente G. Arbutante - do -
Hon. Yolando E. Hormachuelos - do -
Hon. Julio A. Sumaylo ABC President



ABSENT: Hon. Rogelin C. Degoma Vacation Leave

MUNICIPAL ORDINANCE NO. 02
Series of 2017

AN ORDINANCE REGULATING THE CONDUCT OF SNORKELING ACTIVITY WITHIN THE MUNICIPAL WATERS OF PANGLAO, BOHOL AND PRESCRIBING FEES AND PENALTIES THEREOF

(Sponsored by: Hon. Noel E. Hormachuelos)

SECTION 1. TITLE— This Ordinance shall be known as “**AN ORDINANCE REGULATING THE CONDUCT OF SNORKELING ACTIVITY WITHIN THE MUNICIPAL WATERS OF PANGLAO, BOHOL AND PRESCRIBING FEES AND PENALTIES THEREOF**”

ARTICLE I

NATURE AND SCOPE, DECLARATION OF POLICY, AND DEFINITION OF TERMS

SECTION 2. NATURE AND SCOPE – This ordinance shall be enforced within the territorial jurisdiction of the Municipality of Panglao, Bohol. All designated snorkeling sites and marine protected areas, as well as those to be established in the future are covered by this ordinance.

SECTION 3. DECLARATION OF POLICY

It is hereby declared the policy of the municipality:

- To regulate and institutionalize the conduct of snorkeling activity within the municipal seawaters of Panglao, Bohol, in order to attain and maintain a judicious and prudent conservation, preservation, management, and utilization of municipality's aquatic marine resources in promoting sustainable snorkeling tourism industry;
- To prevent and avoid acts which endanger the marine environment, and the activities which result in coral reef degradation, destruction of marine life habitat, pollution of pristine sea water and ecological imbalance;
- To implement a system-oriented and integrated approach to the municipality's marine ecological system to ensure a balance between sustainable snorkeling tourism industry development and environmental protection in order to derive therefrom maximum benefits by the present and future generations.



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SECTION 4. DEFINITION OF TERMS

For the purpose of this Ordinance, the following definitions shall be applied:

- a. **Snorkeling**- refers to an activity in water for the purpose of viewing marine life and underwater scenery or simply swimming using mask and snorkel.
- b. **Snorkeling Guide** – refers to a bonafide member of an association duly accredited by the municipality who possess the necessary minimum qualification standards and regulatory requirements prescribed by the local government unit of Panglao.
- c. **Snorkeling Site** – refers to the designated snorkeling areas, including but not limited to, buffer zones of the Marine Protected Areas wherein guests are permitted to conduct snorkeling activities.
- d. **Snorkeler Fee**– refers to the environmental user fee collected from the conduct of snorkeling in the designated snorkeling sites or buffer zone of Marine Protected Areas within the municipal sea waters of Panglao.
- e. **EUF Monitoring Team** – refers to persons authorized by the municipality to do onsite monitoring, inspection, and collection of used EUF tickets;
- f. **Buffer Zone** – refers to areas designated before the core zone of the Marine Protected Areas or Dive Site Sanctuary;
- g. **Core Zone** – refers to areas designated as the main section of the Marine Protected Areas or Dive Site and Sanctuary;
- h. **Marine Protected Area (MPA)** – refers to a designated area in the municipal waters where fishing and other forms of human activities are regulated to protect the area's ecosystem. It is an effective fisheries management strategy that seeks to promote recovery of degraded habitats critical to enhancing and sustaining our fishery resources. The marine protected area is divided into two zones, namely core zone and buffer zone.
- i. **Municipal Waters** – refers, but not limited to, streams, lakes, inland bodies of water and tidal waters within the municipality which are not subject of private ownership and not included within the national parks, brackish water fishponds leased by the government, and national fishery reserves, refuge and sanctuaries but also marine waters included between two lines drawn perpendicular to the general coastline from points where the boundary lines of the municipality touch the sea at low tide and a third line parallel with the general coastline including offshore islands and kilometers from such that there is less than thirty (30) kilometers of marine waters between them, the third line shall be a line equidistant from the opposite shores of the respective municipalities;
- j. **Net EUF Collection** – refers to the money left from the gross EUF collection after deducting the operating or administrative expenses such as personnel wages or salaries, printing of tickets, and other related expenses;
- k. **Resident**– refers to any of the following:
 - k. 1. local residents permanently residing in the municipality of Panglao;
 - k. 2. those residing permanently in the municipality of Panglao but occasionally or in most of the time stays outside of the municipality;
 - k. 3. those born in the municipality of Panglao but has established residence outside of the municipality;
 - k. 4. those who exercises his/her right of suffrage in the municipality of Panglao;



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- k. 5. those who owns real property in the municipality of Panglao, including members of his/her immediate family. Members of immediate family shall mean those relatives within the first degree of consanguinity
- k. 6. foreign national permanently residing in the municipality of Panglao
- l. **Tourist**– refers to any person not being a resident of the municipality of Panglao, who enters the municipality, through any landing sites or other point of entry for the purpose of visiting, enjoying, viewing, and/or experiencing its tourist destination and other eco-tourism spots, whether natural or man-made, although for a momentary period only;
- m. **Transient Boat** – refers to a boat originating from other municipalities or cities other than the Municipality of Panglao carrying divers/snorkelers/tourists for a day-dive or night dive in the municipal waters of this municipality;
- n. **Trust Fund** – refers to a special account fund established for public purposes by, with, and through local government, as provided in this Ordinance, which form the trust sets out its legal terms and uses, and assigns respective rights, roles, and responsibilities of different parties;
- o. **Dead Speed** – refers to a boat speed with engines or propellers turned off or on neutral gearshift;
- p. **EUF IDs (Token)** – refers to an Environmental User's Fee ID (Token) which is temper proof card or token specifying therein a serial number or names of divers/snorkelers/dive centers/shops/operators to be filled in the respectively containing therein the Municipality of Panglao Logo with designs and appearances of a souvenir;
- q. **Special Transient Permit** – refers to a permit issued by the Municipality under the Office of the Mayor to Transient Dive Centers/Shops/Operators;
- r. **Marine Protected Area Management Team** – refers to an organization or association of people deputized and/or authorized by the municipal government to manage a particular marine protected area;
- s. **Bantay-Dagat** – refers to a deputized officers who are assigned in dive site or snorkeling siteto act as dive ranger/reef ranger in addition to Dive Ranger/Reef ranger designates;
- t. **Snorkeling Carrying Capacity**–refers to the maximum number of individuals which is one hundred fifty (150) per snorkeling sites/MPA buffer zone that can be accommodated in every snorkeling site without affecting the state of the environment, the level of satisfaction of the guests, and the social culture of the municipality
- u. **Snorkeler's Station** – refers to an area wherein guests are administered with the necessary do's and don'ts pertaining to snorkeling activity.
- v. **Snorkel** – refers to the tube or apparatus use in the conduct of snorkeling activity.
- w. **Life vest** – (or life jacket) refers to life preserver consisting of a sleeveless jacket of buoyant or inflatable design.



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ARTICLE II

**SNORKELING GUIDE MINIMUM QUALIFICATION STANDARDS AND REGULATORY REQUIREMENTS,
PAYMENT OF SNORKELING FEE AS PART OF ENVIRONMENTAL USERS FEE**

SECTION 5. SNORKELING GUIDE MINIMUM QUALIFICATION STANDARDS AND REGULATORY REQUIREMENTS

At no instance shall snorkeling activity be allowed to be conducted by the guests within the territorial jurisdiction of Panglao, without the assistance of a snorkeling guide possessing the following minimum qualification standards and regulatory requirements, and that:

- 5.1 He/She must be a bonafide resident of Panglao, and at least eighteen (18) years of age.
- 5.2 He/She must be a member of an organization of snorkeling guide duly accredited by the Sangguniang Bayan of Panglao.
- 5.3 He/She must be a holder of Certificate attesting that he/she attended and completed an orientation seminar conducted pertaining to "Basic Training on Snorkeling Standards, Guides and Principles"
- 5.4 He/She must be of good moral character, without any derogatory record or case pending before any judicial court;

In conducting the guiding activity, all snorkeling guides shall follow the daily rotation scheme/assignment designed by the local government unit in order to give every member in the association an equal and fair share from the snorkeling fee as source of daily subsistence.

SECTION 6. ADOPTING AN ADVANCE RESERVATION OR QUEUING (FIRST COME, FIRST SERVE BASIS FOR WALK-IN GUEST) SYSTEM FOR EFFICIENT MANAGEMENT OF GUEST AND THE COLLECTION OF FEES

6.1. The snorkeling activity shall be implemented through the adaption of an Advance Reservation System, or Queuing (first come, first serve basis) System by the guest at every snorkeling site or Marine Protected Area. The guest who secured an advance reservation is given priority to conduct snorkeling activity over the walk-in guest. Thus, when all the slots intended for the desired snorkeling sites or MPAs are already taken, the guest who failed to secure an advance reservation will be advised to proceed to other snorkeling sites and MPAs. The mechanism of the advance reservation system is developed and implemented by the Coastal Resource Management Office (CRMO).

6.2. In determining the queuing of the walk-in guest at the snorkeler station on the actual date for the payment of snorkeling fee, as well as for briefing and orientation, shall be based on the actual time of arrival at the snorkeling site or MPA. In other words, guest would be catered on a first come, first serve basis.

6.3. The implementation of the advance reservation system is for the purpose of observing the carrying capacity control policy implemented by the municipal government in accordance with existing laws and regulations pertaining to the environment protection.

6.4 Tourism related establishments who want to be registered in the Advance Reservation System (ARS) shall comply the following requirements:

- 6.4 a. Current year Business permit;



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6.4 b. Certification duly issued by the Tourism Office/Coastal Resource Management Office that the applicant for registration is a tourism-related establishment.

6.5 In the event of cancellation by the guest in a slot already reserved by the tourism related business establishments from the Advance Reservation System, in as much as said reservation is already considered sold, the business establishments is allowed to offer/sell the cancelled slots to other tourism related business establishments.

SECTION 7. PAYMENT OF SNORKELING FEE.

7.1 The payment of snorkeling fee shall be transacted only at the Municipal Treasurers Office, or at the snorkelers' station. The payment shall be evidenced by the issuance of official receipt by the designated municipal employee tasked to discharge such function. The guest who availed of the advance reservation system, upon arrival at the snorkeling site or Marine Protected Area, shall be advised to go direct to the briefing and orientation area for the conduct of the lecture.

7.2 However, for the walk-in guest upon arrival at the area, he/she shall be directed to proceed immediately to the snorkeler station to queue for the payment of snorkeling fee. Thereafter, he/she shall be advised to go to the briefing area for the conduct of briefing and orientation lecture.

SECTION 8. SNORKELING FEE

The following shall be the prescribed rates as snorkeling fee imposed and to be collected under this ordinance. All collections from the implementation of this ordinance shall form part of the Gross EUP Collection.

8.1 a. A snorkeling fee with the amount shown in the adjacent column, for one (1) day snorkeling activity in any designated snorkeling sites and buffer zones on MPAs in Panglao, except in Balicasag Island designated snorkeling sites and Marine Protected Areas, shall be collected at the snorkeling station. Upon payment, the guest shall be issued with Official Receipt (OR) and Snorkeling souvenir card.	Php300.00 per person per day (which comprise of P 100.00 for the snorkeling guide, another P 100.00 as Environmental Users Fee and P 100.00 for the snorkeling apparatus. However, guest who would bring their snorkeling apparatus would no longer be collected with the amount of 100.00)
8.1 b. In Balicasag Island, there are two (2) Snorkeler Stations tagged as Snorkeler Station No. 1, and Snorkeler Station No. 2 located in the buffer zones of every Marine Protected Area. There are designated entrance and exit areas in every snorkeling site depending on the prevailing tidal current direction, and snorkeler must go with the current. Every snorkeling site is allowed to accommodate a maximum of one hundred and fifty guests (150) and a snorkeling fee with the amount shown in the adjacent column, for one (1) day snorkeling activity in designated snorkeling sites, or in buffer zones on Marine Protected Areas shall be collected at the snorkeling station. Upon payment, the guest shall be issued with Official Receipt (OR) and Snorkeling souvenir card.	Php 450.00 per person per day (which comprise of P 150.00 for the snorkeling guide, another P 150.00 as Environmental Users Fee and P 150.00 for the snorkeling apparatus. However, guests who would bring their snorkeling apparatus would no longer be collected with the amount of 150.00)



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8.1 c. For transient boat for one (1) day visit carrying snorkelers	<i>Php 2, 000.00 per boat</i>
8.1 d. For live-aboard boat for one (1) day visit carrying snorkelers	<i>Php 3, 500.00 per boat</i>
8.1 e. Snorkeling activity to be conducted for the purpose of research, educational and other scientific endeavors in the municipal waters by any private organizations or non-government entities.	<i>Php 300.00 per person per day</i>

8.2. The share of the snorkeling guide in the snorkeling fee, by reason of their snorkeling guide services rendered, can be claimed after rendering their guiding activity during the day as determined by the Office of the Municipal Treasurer subject to existing accounting and auditing rules and procedures.

8.3. Guest who will pay Environmental Users Fee for the conduct of diving shall likewise be charged with separate snorkeling fee should he/she wish to go into snorkeling activity.

8.4. Other than the rates of fees in the aforementioned column, there shall be no more fees to be collected out from the conduct of snorkeling activity. All amounts collected therefrom shall be held in a trust fund, and be allocated and disbursed for the maintenance and preservation of the environment of the municipality, and with other related administrative expenses directly related thereto.

SECTION 9. BRIEFING AND ORIENTATION ON SNORKELING BASIC SAFETY RULES, GUIDELINES AND OPERATING PRINCIPLES

9.1 At no instance shall guest be allowed to go into actual snorkeling activity in the established snorkeling sites, without undergoing prior briefing and orientation on Snorkeling Basic Safety Rules, Guidelines and Operating Principles.

9.2 Guest shall be allowed to attend briefing and orientation only upon showing of official receipt evidencing the payment of snorkeling fee. The briefing and orientation shall include, among others:

- a. Every guest must fill up the prescribed Snorkeling Form at the snorkeler station, providing therein the desired information data relative to his personal profile. After accomplishing the form, the briefing and orientation would commence;
- b. Briefing and orientation shall cover, among others:
 - b. 1 Snorkeling site or MPA Site evaluation;
 - b. 2 Surface and underwater condition;
 - b. 3 Water visibility;
 - b. 4 Water temperature;
 - b. 5 Boat traffic in the designated snorkeling sites;
 - b. 6 Mooring buoy;
 - b. 7 Entry and exit in the designated snorkeling sites;
 - b. 8 Site parameters (depth, time and boundaries)
 - b. 9 Animals, corals and other interesting highlights, and
 - b. 10 Hand signals, Snorkeling duration, and Snorkelers entrance, and exit

9.3 Snorkeling techniques which include buoyancy, surface swimming, cleaning of water from snorkel and mask, and performing effortless dives.



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9.4 Proper fitting on equipments:

- 9.4 a. Mask/snorkels
- 9.4 b. Fins/suit/vest
- 9.4 c. Weights (optional)

ARTICLE IV

PROHIBITED ACTS DURING THE CONDUCT OF ACTUAL SNORKELING ACTIVITY

SECTION 10. The following acts are not allowed during the actual conduct of snorkeling activity. Any of the acts would constitute as violation, and warrants the imposition of the penalties provided herein.

- 10. a. However, there are violations provided under Republic Act No. 10654, otherwise known as, AN ACT TO PREVENT, DETER AND ELIMINATE ILLEGAL, UNREPORTED AND UNREGULATED FISHING, and AMENDING REPUBLIC ACT NO. 8550, OTHERWISE KNOWN AS THE PHILIPPINE FISHERIES CODE OF 1998," that are explicitly adopted, and considered form part of this ordinance. And in determining the summary finding of Administrative Liability of the offender under this ordinance by the municipal government, the offender shall be imposed with an administrative fine, with the amount of P 2, 500.00 per person. And such administrative fine shall go the coffer of the municipal government being vested with local autonomy under Republic Act No. 7160, otherwise known as the Local Government Code of the Philippines:
- 10. b. It shall be unlawful for any guest to gather or possess any kind of marine products, possess coral sand, coral fragments, coral rocks, silica, and any other substances which make up any marine habitat, except if it is for the purpose of research or scientific endeavor with prior permission from the local government unit. It shall also be unlawful for any guest to commit any activity that damage coral reefs, seagrassbeds, and other fishery marine life habitat. Upon summary finding of administrative liability, the erring guest shall be punished with an administrative fine equivalent to the amount of P 2, 500.00 per person, and forfeitures of the subject corals.
- 10. c. Non-registration at the snorkeler's station, and non-payment of the prescribed snorkeling fee
- 10. d. Engaging snorkeling activity without undergoing prior snorkeling briefing and orientation sessions or improper disposition of tickets
- 10. e. Engaging of snorkeling activity without wearing the prescribed snorkeling gadgets and equipments
- 10. f. Stepping on corals, placing of cameras on coral reefs, or moving of marine life to capture a better shot, fish feeding and wearing of hand gloves or collecting of marine life as souvenirs from the beach or ocean
- 10. g. Chasing, touching, spearing, gathering or to cause the capturing of any marine life,
- 10. h. Vandalism in the designated snorkeling sites covered under this ordinance or littering within the designated snorkeling sites or Marine Protected Areas with any kind of garbage or Any other acts that destroy or may cause marine protected areas and snorkeling sites
- 10. i. For the pump boats/bancas that traverse within the core zones of the Marine Protected Areas or Intentional cutting of mooring buoys



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10. j. Inconsideration of utmost safety regarding the proper use of mooring buoys a distance of thirty-sixty meter radius from existing entry and exit buoys, boat skipper should maintain a dead speed. Mooring of boats or "bancas" and the likes, outside the mooring area designated by the municipality.

SECTION 11. SNORKELING GADGETS AND EQUIPMENTS

Guest who wishes to go into snorkeling activity shall be allowed to do such, only if he wears the following gadgets and equipments:

- Mask and snorkel
- Body suit
- Fins
- Optional weights
- Snorkeling vest

SECTION 12. PRINTING OF OFFICIAL RECEIPT AND SNORKELING SOUVENIR CARD TO BE GIVEN TO THE GUEST

The Municipal Treasurer's Office shall cause the printing of the Official Receipt and Snorkeling Souvenir Card to be given to the guest as souvenir on their visit and conduct of snorkeling activity in Panglao. The Municipal Treasurer's Office or any duly designated municipal employee shall issue official receipt to the paying guest upon payment of the snorkeling fee, either at the Treasurer's Office or at the snorkeling station. There shall likewise be a snorkeling souvenir card to be given to the guest as memento for his visit and conduct of snorkeling activity in Panglao.

SECTION 13. ADOPTION AND INCORPORATION OF THE ENVIRONMENTAL USER'S ACTIVITY FEE SYSTEM.

The snorkeling activity which is the subject matter of this ordinance shall hereby adopt or be incorporated in the Environmental Users Activity Fee System which effectively allocates responsibility for coastal environment management, development, and protection by charging a certain amount for the use and/or enjoyment of Panglao's municipal waters, coastal resources, MPAs, now snorkeling sites and other tourism areas.

SECTION 14. EXEMPTIONS FROM PAYING SNORKELING FEE

14. a. Any government organizations and academic institutions that would conduct research or study for scientific and educational purposes shall be exempted from paying the snorkeling fee. Provided, they are still required to follow the other requirements. Provided further, that those government organizations and academic institutions shall secure the necessary research permit from the Office of the Municipal Mayor. Present necessary papers from the appropriate government agency authorizing them to conduct research and shall secure the necessary research permit from the Department of Agriculture through BFAR, thereafter from the Office of the Mayor for the necessary clearance to conduct research.

14. b. The residents of Panglao residents are also exempted to pay the snorkeling fee, provided they can present proof of residency such as, but not limited to, voter's ID, Community Tax Certificates, government issued identification cards and the like.



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ARTICLE V

PENAL, TRANSITORY AND FINAL PROVISIONS

SECTION 15. PENALTIES.

15. a. Any guest found violating on any of the provisions of this Ordinance, except those adopted from Republic Act No. 10654, An Act To Prevent, Deter, and Eliminate Illegal, Unreported and Unregulated Fishing, amending Republic Act No. 8550, otherwise known as The Philippine Fisheries Code of 1998 and for Other Purposes, which already contain an administrative fine, shall be punished with a fine in an amount of Two Thousand Five Hundred Pesos (P2, 500.00) per person for every violation thereof.

15. b. However, for the erring Snorkeling Guide, he must be punished with a suspension of ten (10) working days in his rotation slot as snorkeling guide. Succeeding violation would immediately effect cancellation of his certificate of membership in the association, thereby barring him to continue exercising his occupation as snorkeling guide.

SECTION 17. SEPARABILITY CLAUSE.

If any portion of this Ordinance is declared unconstitutional or invalid, the portions or provisions which are not affected shall continue to be in full force and effect.

SECTION 16. REPEALING CLAUSE.

All laws, decrees, executive orders and rules and regulations or parts thereof which are inconsistent with this Ordinance are hereby repealed or modified accordingly.

SECTION 19. EFFECTIVITY.

This Ordinance shall take effect fifteen (15) days after its complete publication in at least two (2) newspaper of provincial circulation.

ENACTED: This 30th day of January, 2017 at Panglao, Bohol.

UNANIMOUSLY APPROVED.

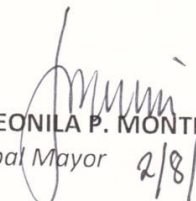
I hereby certify that this is a true and accurate copy of the ordinance duly enacted by the Sanggunian on the 30th day of January, 2017.


REBECCA T. LUSPOC
Acting SB Secretary

ATTESTED:


HON. PEDRO E. FUERTES
Vice Mayor/ Presiding Officer

APPROVED:


HON. LEONILA P. MONTERO
Municipal Mayor 2/8/17